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U.S. Department of State Diplomacy in Action

Tajikistan

BUREAU OF DEMOCRACY, HUMAN RIGHTS, AND LABOR

[2008 Country Reports on Human Rights Practices \(//2009-2017.state.gov/j/drl/rls/hrrpt/2008/index.htm\)](http://2009-2017.state.gov/j/drl/rls/hrrpt/2008/index.htm)

Report

February 25, 2009

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Tajikistan, with a population of approximately seven million, is an authoritarian state, and political life is dominated by President Emomali Rahmon and his supporters. While the country's constitution provides for a multiparty political system, in practice the government obstructed political pluralism. The November 2006 presidential election lacked genuine competition and did not meet international standards, although there were some improvements on voting procedures. The civilian authorities generally maintained effective control of the security forces.

The government's human rights record remained poor, and corruption continued to hamper democratic and social reform. The following human rights problems were reported: restricted right of citizens to change their government; torture and abuse of detainees and other persons by security forces; threats and abuse by security forces; impunity of security forces; lengthy pretrial detention; denial of right to fair trial; harsh and life-threatening prison conditions; prohibited international monitor access to prisons; restricted freedom of speech, the press and media; restricted freedom of association; restrictions on freedom of religion, including freedom to worship; harassment of international nongovernmental organizations (NGOs); difficulties with registration and visas; violence and discrimination against women; trafficking in persons; and child labor.

RESPECT FOR HUMAN RIGHTS

Section 1 Respect for the Integrity of the Person, Including Freedom From:

a. Arbitrary or Unlawful Deprivation of Life

The government or its agents did not commit any politically motivated killings; however, there were cases of deaths in detention facilities. In some cases families of detainees disputed the official cause of death. In September Sadullo Rakhimov died after six months in pretrial custody. The authorities claimed that Rakhimov died of natural causes, but his family claimed that he died as a result of mistreatment.

During the year the number of victims of landmines decreased, with four deaths and eight injuries. In 2007 there were 13 victims, seven of whom died. The government continued to work with international organizations to remove landmines throughout the country.

b. Disappearance

There were no reports of politically motivated or other disappearances.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The law prohibits such practices; however, security officials reportedly employed them. Officials did not grant sufficient access to information to allow human rights organizations to investigate claims of torture.

Security officials, particularly from the Ministry of Interior (MOI), continued to use beatings or other forms of coercion to extract confessions during interrogations. Beatings and other mistreatment were common also in detention facilities. A 2008 study by the Bureau for Human Rights and Rule of Law, a local NGO, credibly found a bias in the criminal justice system toward law enforcement officials exacting confessions from those who are arrested. Articles in the criminal code do not specifically define torture, and the country's law enforcement agencies have not developed effective methods to investigate possible violators.

The government prosecuted 67 officials for misconduct during the year, but it is unclear how many of these cases were for torture or degrading punishment. Prosecutors have generally charged law enforcement officials under criminal provisions related to abuse of official powers or extracting testimony under duress.

Prison and Detention Center Conditions

The government operates eight prisons, including one for female convicts, and four pretrial detention facilities.

The Ministry of Justice (MOJ) continued to refuse access to prisons or detention facilities to representatives of the international community and civil society seeking to investigate claims of harsh treatment or conditions. Some foreign diplomatic missions and NGOs were given access to implement assistance programs or carry out consular functions, but their representatives were limited to administrative or medical sections, and they were accompanied by ministry of justice personnel. The government has not signed an agreement with the International Committee for the Red Cross (ICRC) to allow free and unhindered access to prisons and detention centers, and ICRC's international monitoring staff has not returned to the country since departing in 2007.

During the year detainees and inmates complained of harsh and life-threatening conditions, including overcrowding and lack of sanitary conditions. Disease and hunger were serious problems, but outside observers were unable to assess accurately the extent of the problems because of lack of access. Organizations that work on prison issues reported that infection rates of tuberculosis and HIV was significant, and that the quality of medical treatment was low.

d. Arbitrary Arrest or Detention

The government has not substantially altered the Criminal Procedure Code (CPC) since the Soviet period, and the criminal justice system failed to protect individuals from arbitrary arrest or detention. There were few checks on the power of prosecutors and police to make arrests.

Role of the Police and Security Apparatus

The MOI, the Drug Control Agency (DCA), the Agency on State Financial Control and Fight Against Corruption (Anti-corruption Agency), the State Committee for National Security (SCNS), the State Tax Committee, and the Customs Service shared civilian law enforcement responsibilities. The MOI is responsible primarily for public order and controls the police force. The Drug Control Agency, Anti-corruption Agency, and the State Tax Committee each have mandates to investigate specific crimes, and they report to the president. The SCNS has responsibility for intelligence, and controls the Border Service. The Customs Service reports directly to the president. The Prosecutor General's Office oversees criminal investigations conducted by these agencies.

The responsibilities of each of these entities overlapped significantly, and law enforcement agencies deferred to the SCNS. Law enforcement agencies were not effective at investigating organized criminal gangs, and corruption remained a serious problem. There were credible allegations that officers bribed their commanders for promotion. Traffic police were known to retain for themselves the fines they issued for traffic violations. While there were some prosecutions of law enforcement officials, many serious abuses--particularly those committed by high-ranking officials--went unpunished.

Victims of police abuse may submit a formal complaint in writing to the officer's superior. However, most victims chose to remain silent rather than risk retaliation by the authorities. During the year the government arrested 67 law enforcement officials for criminal violations; approximately 29 of these were arrested for corruption. Of the 109 law enforcement officials arrested in 2007, courts convicted 103 and released or acquitted the remaining six.

Arrest and Detention

Prosecutors are empowered to issue arrest warrants, and there is no requirement for judicial approval of an order for pretrial detention. The law allows police to detain a suspect without a warrant in certain circumstances, but a prosecutor must be notified within 24 hours of arrest. Pretrial detention may last up to 15 months in exceptional circumstances. Local prosecutors may order pretrial detention for up to two months; subsequent detentions must be ordered by progressively higher level prosecutors. A defendant may petition for judicial review of a detention order. However, judges rarely questioned detention decisions, and observers regarded this review as a formality.

Individuals have the right to an attorney upon arrest, and the government must appoint lawyers for those who cannot otherwise afford one. In practice the government did not always provide attorneys, and those it did provide generally served the government's interest, not the client's. There is no bail system, although criminal case detainees may be released conditionally and restricted to their place of residence pending trial. According to the law, family members are allowed access to prisoners only after indictment; officials occasionally denied attorneys and family members access to detainees. The authorities held many detainees incommunicado for long periods without formally charging them.

The government generally provided a basis for arrest, although there were claims that authorities falsified charges or inflated minor problems to make politically motivated arrests. Police occasionally arrested innocent persons, accused them of committing crimes the police were attempting to solve, and subsequently framed them to report a false resolution of the case. In some cases law enforcement officials did not obtain arrest warrants as required and did not bring charges within the time specified by the law.

Prosecutors oversee the pretrial investigation, and they have the right to initiate criminal proceedings.

Amnesty

Unlike the previous year, there was no general amnesty.

e. Denial of Fair Public Trial

Although the law provides for an independent judiciary, in practice the executive branch and criminal networks exerted pressure on prosecutors and judges. Corruption and inefficiency were significant problems.

The CPC gives the prosecutor a disproportionate degree of power in relation to judges and defense advocates. This power includes control of the formal investigation and oversight of the entire case proceedings. "Supervisory powers" provided by law allow prosecutors to protest a court decision outside of normal appeal procedures. Prosecutors effectively can cause court decisions to be annulled and reexamined by higher courts indefinitely after appeal periods have expired. These powers are an impediment to establishing an independent judiciary.

The criminal courts generally have three levels: district, city or regional, and national courts. Most cases are heard in general criminal courts. However, in rare instances military courts try civilians, where they have the same rights as defendants in civilian courts. A military judge and two officers drawn from the service ranks hear such cases. A constitutional court adjudicates claims of constitutional violations.

The president is empowered to appoint and dismiss judges and prosecutors with the consent of parliament. Judges at all levels often were poorly trained and had extremely limited access to legal reference materials. Low wages for judges and prosecutors left them vulnerable to bribery, which remained a common practice. Judges were subject to political influence.

The government addressed problems of judicial integrity by holding some judges and prosecutors accountable for criminal conduct. During the year the government arrested four judges and one justice system employee for corruption. Courts convicted four justice employees who were arrested in 2007, primarily for corruption. Of these, two were notaries and two were judges.

Trial Procedures

Trials are public, except in cases involving national security. The authorities have denied access to monitoring organizations to trials without cause. A panel consisting of a presiding judge and two "people's assessors" determines guilt or innocence. Qualifications of the assessors and how they are determined is unclear, but their role is passive, and the presiding judge dominates the proceedings.

According to the law, cases should be brought before a judge within 28 days after indictment; however, most cases were delayed for months. Under the law, courts appoint attorneys at public expense; however, in practice authorities often denied arrested persons access to an attorney.

Those who were indicted were invariably found guilty. Judges often gave deference to uncorroborated testimony of law enforcement officers, especially members of the SCNS, and often discounted the absence of physical evidence.

According to the law both defendants and attorneys have the right to review all government evidence, confront and question witnesses, and present evidence and testimony. No groups are barred from testifying, and, in principle, all testimony receives equal consideration. The law provides for the right to appeal. The law extends the rights of defendants in trial procedures to all citizens.

While prosecutors are allowed legally to intervene in cases, there were no reported incidents of prosecutors exercising this right.

Political Prisoners and Detainees

Authorities claimed there were no political prisoners and that they did not make any politically motivated arrests; however, opposition parties and local observers claimed that the government selectively prosecuted political opponents. There was no reliable estimate of the number of political detainees.

Muhammadrusi Iskandarov, head of the Democratic Party of Tajikistan and former chairman of Tojikgaz, the country's state-run gas monopoly, remained in prison following his unlawful extradition from Moscow and 2005 conviction for corruption. Former Interior Minister Yakub Salimov remained in prison serving a 15-year sentence for crimes against the state and high

treason following his 2005 closed trial. Rustam Fayziev, deputy chairman of the unregistered Party of Progress, continued to serve a five-year sentence in jail for insulting and defaming President Rahmon in a 2005 letter.

Civil Judicial Procedures and Remedies

Civil cases are heard in general civil courts, economic courts, and military courts. In practice the jurisdictions of these courts overlap significantly, impeding fairness and efficiency. For example, the Supreme Court determined that a military court should hear civil cases related to the Jehovah's Witnesses because evidence presented by the SCNS involved national security. An economic court heard a land use dispute between the Grace Sun Min Church and the City of Dushanbe, despite the lack of a clear commercial interest.

Although the constitution provides for an independent judiciary, in practice it was neither independent nor impartial in civil matters. In the Grace Sun Min Mission Center case, the Dushanbe city government repeatedly filed suits in the Dushanbe Economic Court to gain control over property rights that the church had purchased in the late 1990s. In 2004 the Dushanbe Economic Court issued a decision in the Mission Center's favor. The city of Dushanbe filed a petition, and the Dushanbe Economic Court reopened the case, ignoring both the court's previous decision and that the legal appeal period had expired. In December 2007 the court again ruled in the Mission Center's favor. In August the Supreme Economic Court ordered that the Dushanbe court again hear the case. The court ruled against the Mission Center, and the Supreme Economic Court upheld the ruling. Observers were unable to explain the new decision, which ignored all prior decisions. Credible sources alleged that judges involved in the case were under the influence of the Dushanbe mayor, Mahmad Said Ubaidulloev.

Property Restitution

Despite changes to the land code, substantive property law is weighted against private property holders. Property recording systems are outmoded, leaving government officials with numerous opportunities to claim that property owners violated regulations. Government officials relied on lack of procedural transparency to implement development plans that call for building new business or residences in city centers at the expense of long-time residents. Municipal governments that developed these plans did not share them with the public, and evictees were afforded only a cursory degree of due process. Officials appeared to decide that government control of certain parcels was necessary with no public debate and without elaborating on the justification for government seizure. Governments then notified residents that they must leave their property and offered very little compensation. If residents did not comply, city officials took them to court; court hearings generally resulted in an eviction order. Property owners who challenged evictions in the courts generally were unsuccessful and were subject to retribution – some were charged with criminal violations.

In June officials demolished the country's only synagogue to make way for a new presidential palace. In April, despite significant irregularities in the process, a local court upheld an eviction order against Dushanbe's Jewish community. City officials and Jewish community leaders were unable to reach a compromise to relocate the synagogue or pursue an alternative solution. Observers criticized the lack of procedural transparency and fairness, as well as the authorities' unwillingness to compensate adequately the community.

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

The law prohibits such actions, although police forces committed violations in practice.

Under the law police cannot enter and search a private home without the approval of a prosecutor, except in special circumstances in which a delay would impair national security. If police search a home without prior approval, they must inform a prosecutor within 24 hours. In practice police frequently ignored these laws and infringed on citizens' right to privacy. There is no independent judicial review of police searches conducted without permission.

The law prohibits the government from monitoring private communications; however, it is believed that they did so on occasion.

Leaders of the SDPT, SPT (the Narziev faction) and DPT (the Iskanderov faction) alleged that government officials coerced or threatened the members into leaving the parties or denying their party affiliation.

Police and MOI officials often harassed the families of suspects in pretrial detention or threatened to do so to elicit confessions.

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The law provides for freedom of speech and of the press; however, in practice the government restricted these rights.

Authorities subjected individuals who disagreed with government policies to intimidation and discouraged them from speaking freely or critically. Under the law a person can be imprisoned for up to five years for insulting the president.

All newspapers and magazines whose circulations exceed 99 are subject to registration with the Ministry of Culture. There were 173 registered newspapers, none of which were dailies (major newspapers came out once per week). There were also 71 registered magazines and six news agencies. The government continued to control most printing presses and the supply of newsprint. During the year at least six new national newspapers began publishing. Two of these, Asolat and Risolat, were privately funded, religious-themed newspapers.

Media organizations claimed that the new Law on Access to Information, which parliament passed in June, did not in fact give journalists greater access to official information. For example, after the legislation took effect, several ministries and agencies did not provide information unless questions were submitted in writing. Release of the information required the consent of the top ministry and agency officials. Government agencies had up to a month to provide the requested information, limiting journalists' ability to obtain information in a timely manner.

The independent media were active but, as in previous years, the government subjected the media to different means of control and intimidation; media outlets regularly practiced self-censorship out of fear of government reprisal. Credible media sources observed that certain topics were considered off limits including derogatory information about the president or his family members, or questions about financial impropriety by those close to the president.

Government authorities occasionally subjected individual journalists to harassment and intimidation. In August Zainiddin Olimov, head of the Jamoat of Kulob, allegedly assaulted Jurakhon Kabirov in response to an article in the newspaper Millat. Journalists reported that government officials limited their access to information or provided advice on what news should not be covered. There were no reported instances of violence against journalists by unidentified persons.

Other common types of harassment included prosecutions to intimidate journalists, warnings made by telephone and in person at a prosecutor's office or during visits to editorial offices, and selective tax inspections. In September the Prosecutor-General's Office instituted criminal proceedings against Dodojon Atovulloyev, the editor-in-chief of the Moscow-based opposition newspaper Charogh-i-Ruz (The Light of Day). Prosecutors cited provisions in the criminal code that criminalize calling for the overthrow of the constitutional order and public defamation of the president to institute proceedings and are allegedly seeking Atovulloyev's extradition from Russia.

In September the National Association of Independent Media Outlets of Tajikistan (NAIMOT) and the Union of Journalists of Tajikistan (UJT) expressed concern about the treatment of Tursunali Aliyev, for his criticism of Sughd authorities in a 2007 article in Tong, a local newspaper. Local prosecutors rejected charges against Aliyev in 2007 but Sughd regional prosecutors instituted criminal proceedings against him during the year for slander. Observers viewed the case as intended to intimidate journalists. At the end of the year, the case remained underway.

Broadcasting entities must obtain a production license from the State Committee on Television and Radio and a broadcast license from the Ministry of Transport and Communications. The government, however, restricted issuance of these licenses. The government continued to review licensing regulations with public debate and input by journalists, but the process was lengthy, and there were no significant changes to the regulations. The government remained in control of most broadcasting transmission facilities.

There are four state-run television channels that broadcast throughout the country and four state-run television stations that broadcast regionally. There is one national and several regional state-run radio stations. Several independent television and radio stations are available in a very small portion of the country.

Independent radio and television stations continued to experience administrative harassment and bureaucratic delays. Of the private television stations, only a few were genuinely independent, and not all of them operated without official interference. The government granted no new production or broadcast licenses to independent television or radio stations. According to the National Association of the Independent Media of Tajikistan (NANSMIT), more than 20 privately owned broadcasting organizations were unable to begin working because the licensing commission had rejected their documents over the last two or three years.

The government allowed some international media to operate freely, including rebroadcasts of Russian television and radio programs. However, the government continued to deny BBC a renewal of its license to broadcast on FM radio. Community radio stations continued to experience registration and licensing problems that prevented them from broadcasting.

Opposition politicians had very limited access to state-run television. The government allowed opposition leaders limited airtime during the presidential election campaign in October and November 2006.

Internet Freedom

In 2007 the Criminal Code was amended to criminalize libel and defamation on the Internet, punishable by up to two years in prison. At year's end the government had not prosecuted anyone under these amendments.

Two Internet sites remained blocked as a result of the 2006 government order to block access to Web sites that "undermined the state's policies."

Academic Freedom and Cultural Events

There were no reported government restrictions on academic freedom and cultural events.

b. Freedom of Peaceful Assembly and Association

Freedom of Assembly

The law provides for freedom of assembly; however, the government at times restricted this right in practice.

A permit from a local executive committee is required to organize any public assembly or demonstration; only registered organizations may apply for permits. In general the government refused to grant permits for fear that large gatherings would lead to violence and political upheaval. Groups that staged protests without permission from the government were dispersed by police soon after assembling.

In February and March residents of the Gorno-Badakhshan Autonomous Oblast (GBAO) conducted protests against law enforcement officials and for political rights in Khorogh, each consisting of a few hundred persons. Central government officials negotiated an end to the demonstrations.

Freedom of Association

The constitution protects freedom of association; however, in practice the government restricted this right. The Law on Observing National Traditions and Rituals continued to infringe on individuals' abilities to hold private events such as wedding and funeral ceremonies. The law limits the number of wedding guests and controls ceremonial gift presentations and other traditional rituals. The law also regulates the number of guests at funerals and memorial services. Some citizens reported that government officials monitored weddings and funerals to ensure all parties obeyed the new law.

The Law on Public Associations created a complicated process for all NGOs to register with the MOJ; the law gives government authorities numerous bases upon which to delay or deny registration. In 2007, the government required all existing NGOs to reregister. In the beginning of the year, the MOJ announced that slightly more than 1,000 NGOs had completed the reregistration process; there had been 3,500 registered NGOs in 2007.

Many observers confirmed government claims that a large number of the NGOs that were not reregistered were nonfunctional and existed only on paper. However, some legitimate NGOs encountered difficulties in the reregistration process, and some accused government officials of using the process to extort bribes from legitimate NGOs.

Of more than 1,000 NGOs that reregistered, approximately 50 were international entities. The MOJ refused to register a prominent democracy-building international NGO and harassed its staff. Other international NGOs reported difficulties due to unpredictable application of the law. Representatives of local NGOs involved in human rights and democracy activities cited government controls – including the registration process – as reasons why NGOs were generally unable to raise the profile of grassroots civic issues.

The government continued to refuse to register political parties and associations that it considered to be opposition groups. The government also intensified its monitoring of the activities of religious groups and institutions to prevent them from becoming overtly political.

Legislation defines extremism in broad terms and gives law enforcement agencies wide latitude to investigate. There were no reliable estimates of the number of persons arrested or detained for membership in extremist organizations, such as the IMU and Hizb ut-Tahrir (HT). Authorities reported that those arrested faced charges of membership in banned organizations, illegal possession of weapons and the disruption of the constitutional order.

While prosecutors have secured convictions for many of those arrested for extremist activities, law enforcement officials used their authority to monitor, question and detain a broad spectrum of individuals and groups. For example, according to the Prosecutor General's Office, criminal cases were initiated against 23 members of HT in 2007. However, it is believed that authorities questioned or otherwise detained significantly more individuals based on suspicion of HT membership or activities.

c. Freedom of Religion

The constitution provides for freedom of religion; however, in practice the government continued to impose restrictions and respect for religious freedom continued to deteriorate.

The Council of Ulama, a committee of Islamic clergy, provides interpretations of religious practice that imams throughout the country are required to follow. While the council is officially an independent religious body, in practice it is heavily influenced by the government. The Department of Religious Affairs (DRA) at the Ministry of Culture is responsible for general regulation of all religious organizations. The DRA, in consultation with local authorities, registers and approves all religious places of worship. For Muslims, the DRA controls all aspects of participation in the hajj, including choosing participants. President Rahmon established a Center for Islamic Studies during the year to guide religious policy.

The government continued to impose limitations on personal conduct and to restrict activities of religious groups that it considered "threats to national security." A ban on women and girls wearing hijabs in schools and institutions of higher education remained in effect, although implementation of the ban was uneven. Government officials visited mosques on a regular basis to monitor activities, observe those who attended the mosques, and examined audio and video materials for evidence of extremist and antigovernment material. The DRA continued to test imams on their religious knowledge and to ensure they followed official positions on religious issues.

In January the government put the previously independent Islamic University, the country's only religious institution of higher learning, under the administration of the Ministry of Education. Teachers underwent a vetting process, and the university was downgraded to an "Islamic Institute" (a level below that of university but equivalent to a college). Private religious schools are permitted, but they must register with the Ministry of Culture. There were approximately 19 madrassahs at the secondary school level; the government closed none of them during the year. Restrictions on home-based Islamic education remained in place.

Government concerns about foreign influence resulted in restrictive measures against minority religious groups. The government continued its ban on HT, which it classified as an extremist Islamic political movement, and authorities introduced restrictive measures against another Islamic group, the Salafis. The courts upheld the government's ban on activities of the Jehovah's Witnesses.

Government printing houses generally did not publish religious literature; however, they did so in special cases such as the printing of the Koran in Arabic script. The government tightly controlled importation of religious literature. In April the government refused to allow a shipment of books by a Baptist organization, arguing that the size of the shipment was disproportionate to the organization's membership. The Ministry of Culture banned religious literature from organizations it considered inappropriate; Jehovah's Witnesses' literature was included on the list.

In March the government registered Asolat, an independent religious newspaper on Islamic law and practice. By September the newspaper's founder located a publishing house that would agree to print the paper.

Missionaries of registered religious groups were not legally restricted and the law permits proselytizing, but in practice there was official interference with proselytizing. Officials, citing public complaints about Christian missionaries, issued warnings and questioned groups that proselytized.

Societal Abuses and Discrimination

During the year there were no confirmed public anti-Semitic acts, although some imams and mullahs reportedly preached anti-Semitic messages in mosques.

For a more detailed discussion, see the 2008 International Religious Freedom Report at 2009-2017.state.gov/j/drl/irf/rpt.

d. Freedom of Movement, Internally Displaced Persons, Protection of Refugees, and Stateless Persons

The law provides for these rights, although the government imposed some restrictions.

Foreigners are prohibited from traveling within a 15-mile zone along the country's borders with China and Afghanistan without permission from the MFA. The restriction was not always enforced along the western border with Afghanistan, although a special visa was required for travelers, including international workers and diplomats, to Gorno-Badakhshan. Diplomats and international aid workers could travel to the Afghanistan border without prior authorization.

There are no laws that provide for exile, and there were no reports of forced exile. Some government opponents remained in self-imposed exile in Russia.

Persons wishing to emigrate to countries of the former Soviet Union must notify the MOJ prior to their departure. Persons who wish to emigrate to other countries must obtain an immigrant visa to receive a passport.

Most persons who left the country were permitted to return freely. A few individuals active with the opposition who left during the civil war experienced administrative difficulty in obtaining new documents that would permit them to return. The government provided protection and modest assistance to resettle any citizens who returned voluntarily and cooperated with international organizations that helped fund assistance and resettlement programs.

Protection of Refugees

The law provides for the granting of asylum or refugee status to persons in accordance with the 1951 UN Convention relating to the Status of Refugees and its 1967 protocol, and the government has established a system for providing protection to refugees. In practice there were numerous problems with this system.

According to the State Agency for Social Protection, Employment and Migration, there were 1,764 refugees and 338 asylum seekers in the country, most of them Afghans. In addition to general lack of resources, the government had to contend with a rise in the number of those claiming to be refugees; the number of new arrivals claiming refugee status was nearly twice the 2007 number.

The government continued to cooperate with UNHCR, and UNHCR retained its observer status in the Refugee Status Determination Commission. In April the government supported a visit by Antonio Guterres, the UN High Commissioner for Refugees. During this meeting, UNHCR and the government issued a joint communiqué on integrating approximately 1,000 Afghan refugees who had been in the country for many years. While developments were slow, the government took some steps forward, including the development of an implementation plan and the formation of an interministerial working group.

The government generally succeeded in registering those with a claim to refugee or asylum status, however, the government placed significant restrictions on claimants. A law prohibiting asylum seekers and refugees from residing in urban areas remained in effect; those holding refugee status were not entitled to work. Refugees and asylum seekers were generally left to their own devices to secure food and shelter.

There were problems with the status determination process, including lack of transparency. Some decisions to deny refugee status were made without apparent justification. Although the law stipulates that refugee status should be granted for up to three years (and can then be extended), the government rarely granted refugee status beyond a one year period. While the law allows refugees to apply for citizenship after 18 months, few were granted citizenship.

Government actions reflected a particular concern about the country's population of Afghan refugees. Granting refugee status for periods shorter than those prescribed by law allowed law enforcement and security officials to regularly monitor, and in some cases, harass, refugee populations. Government officials used administrative violations – such as violating the ban on residing in urban areas – to revoke refugee status from those who otherwise met the definition of a refugee.

The government generally provided protection against the expulsion or return of refugees to countries where their lives or freedom would be threatened; however, deportation procedures failed to follow the law that allows individuals to appeal within one week of receiving a deportation notice. Prosecutors issued deportation decisions, and these decisions were not subjected to judicial review. For example, in August government officials deported a family of six Afghans despite the fact that the deportation decision had not been delivered to the family prior to the deportation. UNHCR representatives believed that the deportees could have been legitimate refugees.

The government respected protection letters issued by UNHCR and allowed those holding the letters to remain in the country while UNHCR considered their claims. Government officials cooperated with UNHCR on the case of two Iranian asylum seekers who were originally detained in 2006 for illegally crossing the Tajik-Afghan border. The two claimed they feared

extradition and persecution in Iran. The government rejected their asylum claims but agreed to allow UNHCR to conduct its own status determinations.

Section 3 Respect for Political Rights: The Right of Citizens to Change Their Government

The law provides citizens with the right to change their government peacefully; however, in practice the government restricted this right.

The president and his supporters, primarily from his home region of Kulob, continued to dominate the government. The president's political party, the PDPT, held almost all parliamentary seats and government positions. The president had broad authority to appoint and dismiss officials.

Elections and Political Participation

After the 2006 presidential elections, the OSCE's Office for Democratic Institutions and Human Rights (ODIHR) determined that presidential electoral legislation did not provide a framework for democratic elections, that officials exercised excessive control during the campaign period, and that the election was not a true test of democratic principles. Opposition parties, ODIHR, and NGOs generally agreed on the areas that needed reform: increasing accountability for election violations; revising the election law and enacting new legislation; improving electoral administration; establishing an environment considered fair by all for campaigning; and assisting political parties to become more professional

The government reported eight legally registered political parties, including the PDPT. Of the seven remaining parties, observers considered only three to be actual opposition parties. Opposition political parties remained small, had limited popular support, and faced close scrutiny by the government. While they were generally able to operate, they had difficulty obtaining access to state-run media. The chairmen of the SDPT and IRPT alleged that government officials limited their abilities to convene meetings of large numbers of supporters, particularly in areas outside of Dushanbe. The MOJ refused to register a ninth party, the Unity Party.

The law prohibits political parties from receiving support from religious institutions, but religiously affiliated parties, such as the IRPT, could be registered.

The Democratic Party of Tajikistan remained factionalized. Supporters of the party's imprisoned chairman, Mahmadrusi Iskandarov, alleged that the government assisted in dividing the party, leading to the November 2006 presidential election.

All senior members of President Rahmon's government were PDPT members; virtually all members of the country's 97-seat parliament were members of the PDPT, or were otherwise considered to be supportive of the government. The only other parties represented in parliament were the IRPT and the Communist Party. There were 16 women in parliament, and there were five representatives from minorities. Some ministries had female deputy ministers, and ethnic Uzbeks were represented in the government, although not in direct policymaking roles.

Government Corruption and Transparency

The law provides criminal penalties for official corruption, but the government did not implement the law effectively. Officials frequently engaged in corrupt practices with impunity, and corruption and nepotism were pervasive at all levels of government.

The MOI, the MOJ, the Anti-corruption Agency and the Prosecutor General's office are responsible for investigating, arresting, and prosecuting corrupt officials. The government acknowledged a problem with corruption and took steps to combat it, including trying officials for taking bribes. The Prosecutor General investigated some cases of corruption by

government employees, but the bulk of these cases involved mid- or lower- level officials, and none involved large-scale abuses. Many observers accused the government of using the Anti-corruption Agency to harass or investigate political opponents or business rivals.

Throughout the year the government faced scrutiny from the international community over apparently deliberate misappropriations involving the International Monetary Fund (IMF). IMF auditors found that the country had misreported its finances and required the country to make early repayment of IMF loans. Despite evidence that the actions were deliberate, no one was prosecuted. Authorities removed one of those responsible, Murodali Alimardon, the National Bank chief, and awarded him the position of Deputy Prime Minister.

Public budgets, particularly those involving major state-owned enterprises, lacked transparency. While the parliament had oversight over the budget, in practice it passed the most recent budget almost without comment despite large unexplained and undefined expenses. For the first time, ministries and state agencies reported to parliament on implementation of the budget, but neither parliament nor the government released information on the report. It was broadly understood, and privately acknowledged by government officials, that the government used proceeds from state-owned enterprises for off-budget prestige construction projects.

TALCO, the state-owned aluminum smelter that consumed a significant portion of the country's energy resources and produced the country's major export, agreed to a financial audit. However, the off-shore management company, which reportedly was owned by senior politicians and which received the bulk of the proceeds, did not undergo an audit of its financial arrangements.

The law requires government officials to provide information to journalists upon request. In practice the government did not permit free access to information, and some officials disregarded the law concerning journalists, as there was no enforcement.

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

Domestic and international human rights groups continued to face government pressure. The government continued to request sensitive information from NGOs such as employees' personal information, information about students affiliated with the organizations, their activities, and their financial status.

A local NGO investigating property violations reported that government officials refused to provide information about plans to develop Dushanbe, despite the likelihood that such plans would use public funds and involve evictions. The NGO also reported that the same government officials threatened to contact public prosecutors to stop the NGO's inquiries.

The government continued to deny ICRC access to prison facilities. During the year the government cooperated with the United Nations and permitted the visit of Yakin Erturk, the UN Special Rapporteur on Violence Against Women.

The government's Office for Constitutional Guarantees of Citizens' Rights continued to investigate and answer citizens' complaints. Staffing inadequacies and uneven cooperation from other government institutions hampered the office's effectiveness. The parliamentary committee on legislation and human rights also monitored human rights violations, but it lacked full independence. The committee's primary responsibility was to vet new proposed legislation for compliance with human rights obligations.

The government cooperated with international organizations and NGOs in drafting legislation that would establish a human rights commissioner, who would function as an ombudsman. The legislation was passed, but it lacked some basic provisions relating to independence that had been crucial for civil society representatives. A Human Rights Commissioner was not named during the year.

Section 5 Discrimination, Societal Abuses, and Trafficking in Persons

The law provides for the rights and freedoms of every person regardless of race, gender, disability, language, or social status; however, in practice there was discrimination against women, and trafficking in persons was a problem.

Women

Violence against women, including spousal abuse, remained a widespread problem. Women faced societal discrimination based on alleged traditions, diminished educational opportunities, and increased poverty. The law provides women equal pay for equal work with men, but it was not always enforced in practice. NGO representatives claimed that the Committee for Women's Affairs (within the office of the president) was not effective in coordinating public policy.

Most cases of domestic abuse went unreported, making the number of actual cases difficult to estimate. Reported cases were seldom investigated, and few alleged perpetrators were prosecuted. The government had not taken adequate steps to provide for the passage of a law on domestic violence, to conduct public information campaigns, or to collect information on domestic violence or the needs of victims.

The media reported that in some rural areas, officials observed an increase in female suicide. NGO workers suggested that domestic abuse by in-laws or husbands and labor migration may be contributing causes.

The law prohibits rape (although not specifically spousal rape), which is punishable by up to 20 years' imprisonment. Most observers believed that the majority of cases were unreported and that the problem was growing, particularly in urban areas. In addition, family members and acquaintances often used threats of rape to intimidate women. There were no official statistics on the number of rapists charged, prosecuted, or convicted.

Several domestic and international NGOs supported women's resource centers to assist rape and spousal abuse victims. Government funding was extremely limited.

Prostitution is illegal, although in practice apprehended prostitutes were assessed a nominal fine and released. Procurers were prosecuted.

The law prohibits sexual harassment with penalties of up to two years' imprisonment. In practice women were often sexually harassed or had to perform sexual acts in order to get a job or maintain one. Cases often went unreported because of the social stigma attached to victims.

In 2004 the country's highest Islamic body, the Council of Ulama, issued a fatwa that prohibited women from praying in mosques. The government supported the fatwa but expressed concern over the separation of church and state. The IRPT continued to operate two "Friday praying" mosques that permitted women.

The law protects women's rights in marriage and family matters; however, some female minors were pressured to marry men against their will, and high incidences of polygamy, although illegal, were reported. Inheritance laws do not discriminate against women, although in practice some inheritances passed disproportionately to sons.

Children

While the government sought to promote children's rights and welfare, in practice it did not devote adequate financial resources to maintain the social security network for child welfare. The lack of resources contributed to a deterioration of the public school system and the medical infrastructure available to children.

Free and universal public education is compulsory until age 16. However, the law was not enforced and school attendance was low; children worked in the home or in informal activities to supplement family income. Girls were disadvantaged, especially in rural school systems, where families elected to keep them home to help take care of siblings or work in the fields. With the decline of the country's underfunded public schools, a small number of poor male students were recruited and sent to Egypt, Turkey, Saudi Arabia, and Pakistan to receive a free Islamic education.

There is no formal government body to address issues of violence against children. In 2007 the Bureau on Human Rights and Rule of Law, a local NGO, reported that 2,378 acts of violence had been committed against children. Advocates were concerned that many acts of violence were unreported.

Underage marriage was widespread in some rural areas, a practice influenced by the high level of poverty and unemployment that compelled many families to marry off their daughters quickly.

Trafficking in Persons

The country was a source for trafficked persons. The law prohibits trafficking in persons; however, trafficking of women and children for sexual exploitation and the trafficking of men for forced labor was a serious problem. Boys and girls were trafficked internally for various purposes, including forced labor and begging.

Women and girls were trafficked through Kyrgyzstan and Russia primarily to the U.A.E. and Russia for the purpose of commercial sexual exploitation. Most female trafficking victims were single and between the ages of 20 and 26. Men and boys were trafficked to Russia and Kazakhstan for the purpose of labor exploitation, primarily in the construction and agricultural industries. Residents from rural, uneducated, and poor communities were particularly vulnerable.

Authorities and NGOs maintain statistics on trafficking cases, but such statistics were estimates and could not be considered comprehensive. The International Organization for Migration (IOM) reported assisting 46 trafficking victims during the year. Upon return they were provided with medical assistance, training, and other types of support. The authorities had no statistics on labor trafficking. NGO representatives said that a significant percentage, possibly more than 50 percent, of the country's estimated 1 million labor migrants were subjected to some form of exploitation that would meet the definition of trafficking.

Recruiters offered victims false promises of employment, advertising work through social contacts. Traffickers tightly controlled arrangements for travel and lodging and employed contacts among tourism agencies. They sometimes used forged documents to evade entry restrictions in destination countries. Victims commonly were separated from their travel documents upon arrival in the destination country. Debt bondage was a common form of control.

The law criminalizes trafficking in persons with penalties of imprisonment ranging from five to 15 years; however, prosecutors had not successfully prosecuted anyone under the trafficking statute. Prosecutors secured convictions pursuant to other criminal provisions, such as recruitment of persons for exploitation, buying and selling of minors, and document fraud. Penalties under these provisions range from a monetary fine to 15 years' imprisonment. Victims of forced prostitution and labor trafficking cannot be charged for crimes committed while they were victims.

The MOI is responsible for trafficking investigations and arrests, the General Prosecutor's Office is responsible for prosecuting and sentencing convicted traffickers, and the Ministry of Foreign Affairs (MFA) is responsible for trafficking-related repatriation and extradition matters. The Interministerial Commission to Combat Trafficking (ICCT), established within the president's executive office, coordinates antitrafficking efforts and implements the National Government Action Plan on Human Trafficking for 2006-10. The government generally worked openly and cooperatively with the international community and the IOM to combat trafficking.

There was no indication of widespread government involvement in trafficking. However, corruption was endemic, and reports indicated that mid- and low-level government authorities working in customs, border control, immigration, police, and tourism accepted bribes from traffickers. Credible sources alleged that certain government officials acted as patrons or protectors of individuals who were directly involved in trafficking. Traffickers used their contacts in government agencies to obtain false documents.

According to the Prosecutor General's Office, the MOI, and the ICCT mission, fewer persons were arrested, prosecuted and convicted in 2007 than in previous years; 10 of 12 persons arrested for trafficking related offenses were released under a presidential amnesty that year. The commission reported that arrests and prosecutions increased slightly during the year, although the authorities did not prosecute any government officials on trafficking-related charges. The government took some positive steps, however. Prosecutors opened the country's first criminal cases against persons suspected of engaging in labor trafficking. Law enforcement officials have sought to increase cooperation with governments in destination countries, particularly the U.A.E. The authorities instituted new monitoring and licensing requirements for private travel companies.

There were few resources available to trafficking victims. The government officially provided security and assistance to trafficking victims and endorsed efforts by international and domestic NGOs to prevent trafficking and provide services to victims. The government with the help of IOM established two shelters for female trafficking victims. Victims often did not press charges against traffickers due to social stigma.

There were approximately 20 NGOs involved in antitrafficking activities throughout the country. Several provided various services to trafficking victims and carried out a wide range of information programs in conjunction with local. NGOs matched victims with social services, operated crisis centers, and maintained a hot line for trafficking and domestic abuse victims.

Local NGO programs worked with support from international organizations to increase awareness of trafficking; NGOs worked with local officials to conduct training and awareness seminars for the general public, and the government cooperated with NGOs to raise public awareness of trafficking. The government issued press releases warning about the dangers of trafficking and produced television programs to educate the public. It also promoted announcements as well as informational materials produced and distributed by local and international organizations. The government also cooperated with international organizations on prevention programs by holding joint seminars, conferences, and distributing antitrafficking brochures. The government operated a 24-hour telephone hot line.

The State Department's annual Trafficking in Persons Report can be found at 2009-2017.state.gov/j/tip.

Persons with Disabilities

The Ministry of Labor and Social Welfare, the government's Commission on Fulfillment of International Human Rights, the Society of Invalids, and appropriate local and regional governmental structures were charged with protecting the rights of persons with disabilities.

The law prohibits discrimination in employment, education, access to health care, and provision of other state services. However, public and private institutions generally did not have the resources to provide for legal safeguards. There is no law mandating access to buildings for persons with disabilities, and the government did not require employers to provide such access.

Although the government maintained group-living and medical facilities for persons with disabilities, funding was limited and facilities were in poor condition.

National/Racial/Ethnic Minorities

Generally, discrimination was not a significant problem. There were reports that some law enforcement officials harassed ethnic Afghans and Uzbeks, but such reports were not common.

There was a stigma associated with homosexuality that made it difficult to assess the degree of discrimination to which persons were subjected. There was generally no public discussion of homosexuality.

There was also a stigma associated with HIV infection. There were reports that doctors denied some HIV positive patients treatment at medical facilities.

Section 6 Worker Rights

a. The Right of Association

The law allows workers to form and join unions, and they did so in practice. However, the government used informal means to exercise considerable influence over organized labor, including influencing the selection of labor union leaders. The umbrella Federation of Trade Unions of Tajikistan did not effectively represent worker interests. There were reports that the government compelled some citizens to join trade unions and impeded formation of independent unions. According to official figures 1.3 million persons belonged to unions, approximately 63 percent of the active work force. The law requires all NGOs, including trade unions, to be registered in order to operate. The law does not specifically prohibit antiunion discrimination; however, there were no reported incidents of antiunion discrimination in practice.

Citizens werereluctant to strikedue to fears of government retaliation.

b. The Right to Organize and Bargain Collectively

The law allows unions to conduct activities without interference, except "in cases specified by law"; however, the law does not actually specify those cases. The Law on Meetings, which requires that meetings and other mass actions have prior official authorization, limited trade unions' ability to organize meetings or demonstrations. The laws provide for the right to organize and bargain collectively, and workers exercised this right in practice. Collective bargaining contracts covered 90 percent of workers. The law does not restrict the right to strike, but under the Law on Meetings, mass action must have prior approval from the authorities.

There are no export processing zones.

c. Prohibition of Forced or Compulsory Labor

The law prohibits forced or compulsory labor, including of children, except in cases defined in the law; however, there were reports that such practices occurred.

In 2006 President Rahmon issued a decree against compelling students to participate in the annual cotton harvest. However, as in previous years, local government officials mobilized and forced university students, university employees, and government employees in Sughd and Khatlon regions to pick cotton during the annual harvest. There were confirmed reports in at least one region that government-paid university administrators and professors oversaw the organization and transportation of students, and professors accompanied the students to oversee the cotton picking. University faculties in Khatlon and Sughd regions shut down to accommodate the students' participation. Work conditions were generally poor. Many school-aged children, particularly those between 14 and 17, participated in the cotton harvest in rural areas in Sughd and Khatlon. It was unclear whether they were forced or pressured into participating, although they were often supervised by teachers.

Despite evidence to the contrary, the authorities continued to deny official involvement in forced labor. In order to support such claims, some officials forced students to sign documents stating that they willingly participated in the cotton harvest. The government – including representatives of the Ministry for Labor and Social Welfare – did not deploy inspectors to investigate the situation or hold those responsible for illegal labor practices accountable. In December, however, Khatlon prosecutors announced that they had filed charges against local officials in Shahritus and Kubodiyon for using school-aged children in the cotton campaign.

Despite a presidential "Freedom to Farm" pronouncement, which aimed to reform the country's agricultural sector, local strongmen in some districts forced farmers to grow and pick cotton. In a district in Khatlon, a farm manager reportedly refused to recognize farmers' land use rights; used local police officials to enforce his control over the farmers; beat those who refused to work in accordance with his orders; and extorted money from farmers. The victims of this manager felt they had no legal recourse, as the manager was able to influence local law enforcement and judicial officials.

d. Prohibition of Child Labor and Minimum Age for Employment

UNICEF reported that the percentage of children working declined from 25 percent in 2000 to 10 percent in 2005. Nevertheless, child labor remained a widespread problem, and the government neither effectively enforced child labor laws nor developed a comprehensive policy to prevent or eliminate the worst forms of child labor.

The minimum age for children to work is 16, although children may work at age 15 with local trade union permission. By law children under the age of 18 may work no more than six hours a day and 36 hours per week. Children as young as seven years may participate in household labor and agricultural work, which were separately classified as family assistance. Many children under age 10 worked in bazaars or sold goods on the street.

Enforcement of child labor laws is the responsibility of the Prosecutor's Office, the MOJ, the Ministry of Social Welfare, the MOI, and appropriate local and regional governmental offices. Additionally, unions are responsible for reporting any violations in the employment of minors. Unresolved cases between unions and employers may be brought before the prosecutor general for investigation. Very few violations were reported, as most children worked under the family assistance exception. UNICEF estimated that approximately 200,000 children between the ages of five and 14 were in the labor force. The highest incidences of child labor were in the domestic or agricultural sectors. Children were often found working in bazaars.

e. Acceptable Conditions of Work

Government officials reported that the unemployment rate during the year was 2.4 percent, although this did not accurately reflect the employment situation. A significant percentage of the country's working-age population (as many as one million citizens) sought seasonal or permanent work abroad, especially in Russia and Kazakhstan.

The estimated average monthly wage was 267.50 somoni (approximately \$77), but in many sectors, average wages fell far below this average. In the agricultural sector, for example, the average wage was estimated at 118 somoni (\$34). There was no agreed-upon measure of cost of living standards, but the World Bank estimated that 53 percent of the population lived below the poverty line, and that 17 percent lived in extreme poverty. While statistical measures varied, the poverty line was estimated to be 139 somoni (\$40) per month, based on a 2007 survey conducted jointly by the government, the World Bank, and UNICEF. The extreme poverty line was estimated to be 89 somoni (\$25) per month. The government acknowledged the problem of low wages and provided certain subsidies for workers and their families who earned the minimum wage, which was 60 somoni (\$17) per month. Some establishments compensated their employees with food commodities or with enterprise-produced products, which employees either sold or bartered in local private markets.

The law provides for a standard workweek of 40 hours for adults over the age of 18. The law mandates overtime payment, with the first two hours paid at one and half times the normal rate and the remainder at double the rate. Overtime payment was inconsistent in all sectors of the labor force. The Ministry of Finance enforces financial aspects of the labor law, and the Agency of the Financial Control of the presidential administration oversees other aspects of the law.

There are laws that establish relatively strict occupational health and safety standards. In practice the government did not broadly provide compliance with these standards, partly because of the degree of corruption and the low salaries paid to inspectors. The State Technical Supervision Committee under the Council of Ministers was responsible for enforcing health and safety standards. The law permits workers to remove themselves from hazardous conditions without risking loss of employment. This law was not enforced effectively, and few workers did so in practice.

Farmers and agricultural workers, accounting for approximately 66 percent of the workforce, continued to work under difficult circumstances. There was no system to monitor or regulate working conditions in the agricultural sector. Wages were low, and many workers were paid in kind. Despite some changes, the government's failure to introduce and implement comprehensive property and land usage reforms continued to limit its ability to protect agricultural workers' rights.

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